

LEGAL DOCUMENT

SERVICE AGREEMENT.

Between Number 1 Digital Marketing and the Client identified on the signature page of this Agreement. This document sets the rules of engagement, protects both sides, and outlines the terms of our work together.

EFFECTIVE DATE

AGREEMENT #

----- N1- -----

THE AGREEMENT

Service Agreement

This Service Agreement (the "Agreement") is entered into as of the Effective Date set forth on the cover page, by and between Number 1 Digital Marketing ("Service Provider," "we," "us," or "our") and the client identified below ("Client," "you," or "your"). The parties agree as follows:

PARTIES

Service Provider	Client
Number 1 Digital Marketing number1digitalmarketing.com hello@number1digitalmarketing.com	Company: Address: Contact: Email:

1. Services & Scope

Service Provider will provide digital marketing, AI integration, automation, and related services ("Services") as described in the Statement of Work, proposal, onboarding form, or other written description attached to or referenced in this Agreement (the "Scope"). Changes to the Scope require a written change order signed (electronically or otherwise) by both parties. Out-of-scope work will be quoted separately.

2. Deliverables

Service Provider will use commercially reasonable efforts to deliver the Services according to the timelines and milestones outlined in the Scope. Client acknowledges that marketing and AI outcomes depend on many factors outside Service Provider's control (algorithms, market conditions, client cooperation), and that Service Provider does not guarantee specific results, traffic, leads, revenue, or rankings.

3. Term

This Agreement begins on the Effective Date and continues until the Services are completed or terminated under Section 9. Either party may renew or extend by written agreement. Month-to-month engagements automatically renew each calendar month unless either party gives written notice of non-renewal at least fifteen (15) days before the next billing cycle.

4. Fees & Payment

Client agrees to pay the fees set forth in the Scope. Unless otherwise stated, all fees are in USD, exclusive of taxes, and due within fifteen (15) days of invoice date. Late payments accrue interest at 1.5% per month (or the maximum allowed by law). Service Provider may pause Services for invoices more than thirty (30) days overdue. A non-refundable deposit (typically 50%) is required to commence work; the remainder is due per the schedule in the Scope. Ad spend, software licenses, third-party fees, and pass-through costs are billed to Client at cost.

5. Client Responsibilities

Client agrees to: (a) provide timely access to accounts, assets, content, and personnel needed to perform the Services; (b) respond to requests for feedback or approvals within five (5) business days; (c) maintain ownership of and rights to all content provided to Service Provider; (d) comply with all platform terms of service (Meta, Google, etc.); and (e) cooperate in good faith. Delays caused by Client may shift timelines and may incur additional fees.

6. Intellectual Property

Upon receipt of full payment, Service Provider assigns to Client all rights, title, and interest in the final deliverables created exclusively for Client under this Agreement (the "Deliverables"), excluding: (a) Service Provider's pre-existing tools, frameworks, templates, code libraries, and AI prompts ("Background IP"); (b) third-party assets (fonts, images, software) which remain subject to their original licenses; and (c) generic methodologies, know-how, and learnings. Service Provider retains a non-exclusive, royalty-free license to use Deliverables in its portfolio, case studies, and marketing unless Client opts out in writing.

7. Confidentiality

Each party may receive confidential, proprietary, or non-public information from the other ("Confidential Information"). The receiving party agrees to: (a) use Confidential Information only to perform under this Agreement; (b) protect it with the same care it uses for its own confidential information (and not less than reasonable care); and (c) not disclose it to third parties except to employees, contractors, or advisors with a need to know who are bound by similar confidentiality obligations. This Section survives termination.

8. Data, Credentials & Security

Client will provide credentials via a secure password manager or shared vault (1Password, Bitwarden, or similar). Service Provider will store credentials in encrypted form and use them solely for the Services. Service Provider will not be liable for unauthorized access caused by Client's failure to follow reasonable security practices (e.g., password reuse, lack of 2FA).

9. Termination

Either party may terminate this Agreement: (a) for convenience with thirty (30) days' written notice; or (b) for material breach if the breaching party fails to cure within ten (10) business days of written notice. Upon termination, Client will pay for all Services performed up to the termination date. Service Provider will deliver work-in-progress in its then-current state. Sections that by their nature survive termination (IP, Confidentiality, Limitation of Liability, Governing Law) survive.

10. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, NEITHER PARTY WILL BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR LOSS OF PROFITS, REVENUE, DATA, OR BUSINESS OPPORTUNITIES, EVEN IF ADVISED OF THE POSSIBILITY. EACH PARTY'S TOTAL CUMULATIVE LIABILITY UNDER THIS AGREEMENT WILL NOT EXCEED THE FEES PAID BY CLIENT TO SERVICE PROVIDER IN THE THREE (3) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

11. Independent Contractor

Service Provider is an independent contractor. Nothing in this Agreement creates an employment, partnership, joint venture, or agency relationship. Service Provider is responsible for its own taxes, benefits, insurance, and tools.

12. AI & Automation Disclaimer

Services may include AI-generated outputs, automation workflows, and integrations with third-party AI/LLM providers (OpenAI, Anthropic, etc.). Client acknowledges that AI outputs may be imperfect, that AI providers' terms of service apply, that AI usage may incur ongoing token/API costs (passed through at cost or per agreed pricing), and that Client is responsible for human review of AI outputs before public deployment.

13. Indemnification

Each party will indemnify, defend, and hold harmless the other from third-party claims arising from the indemnifying party's: (a) gross negligence or willful misconduct; (b) breach of this Agreement; or (c) infringement of third-party IP rights by content or instructions it provided. Client specifically indemnifies Service Provider for any claim based on content Client supplied or directed Service Provider to publish.

14. Notices

Notices must be in writing and delivered by email to the addresses on the cover/signature page (with delivery confirmation) or by certified mail. Notices are effective on receipt.

15. Governing Law & Disputes

This Agreement is governed by the laws of the state of Service Provider's principal place of business, without regard to conflict of laws. Disputes will be resolved first by good-faith negotiation, then by mediation, and finally by binding arbitration in that jurisdiction. The prevailing party is entitled to reasonable attorneys' fees.

16. Entire Agreement

This Agreement (including the Scope and any signed change orders) is the entire agreement between the parties and supersedes all prior discussions. It may only be amended by a writing signed by both parties. If any provision is held unenforceable, the rest remains in effect. No waiver is effective unless in writing. Neither party may assign without the other's consent, except to a successor in a merger or sale of substantially all assets.

SIGNATURES

In Witness Whereof.

Each party has caused this Agreement to be executed by its duly authorized representative as of the Effective Date.

SERVICE PROVIDER
Number 1 Digital Marketing

CLIENT

SIGNATURE

SIGNATURE

PRINTED NAME

PRINTED NAME

TITLE

TITLE

DATE

DATE